

BEFORE THE STATE BOARD OF REGISTERED PSYCHOTHERAPISTS

STATE OF COLORADO

Case No. 2013-6536 378

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF THE APPLICATION FOR REGISTRATION TO PRACTICE
PSYCHOTHERAPY IN THE STATE OF COLORADO OF VICTOR GARCIA, JR.,

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Registered
Psychotherapists ("Board") and Victor Garcia, Jr. ("Applicant") as follows:

1. The Board has jurisdiction over the person of Applicant and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Applicant applied for registration in the State Board of Registered Psychotherapists Data Base ("Data Base") on or about December 7, 2010 ("Application").
3. Applicant's Application was denied by the Board on or about October 26, 2012.
4. Applicant was notified by letter dated December 12, 2012 that the Board had denied his Application.
5. On or about January 31, 2013, Applicant requested a hearing regarding the denial of his Application.
6. It is the intent of the parties and purpose of this Order to provide for settlement of all matters arising out of case number 2013-6536, Applicant's application for registration in the Data Base. This Order is full and final resolution of Applicant's application for registration in the Data Base. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Applicant, as of the effective date of this Order.
7. The Board alleges the following:

a. On or about December 7, 2010, Applicant submitted an Application for Database Listing as a Registered Psychotherapist ("the Application").

b. In the Application, Applicant answered "Yes" to question #8, "Have you ever received a deferred judgment or been convicted of or pled nolo contendere to a violation of any federal, state, or local law relating to the manufacture, distribution or dispensing of a controlled substance, or relating to drug abuse, including alcohol?"

c. In the Application, Applicant admitted that he was convicted of driving under the influence, in violation of § 42-4-1301(a), C.R.S., pursuant to a March 24, 1991, incident.

d. In the Application, Applicant admitted that he was convicted of driving under the influence, in violation of § 42-4-1301(a), C.R.S., pursuant to a September 4, 1992, incident.

e. In the Application, Applicant admitted that he was convicted of driving under the influence, in violation of § 42-4-1301(a), C.R.S., pursuant to a July 7, 1993, incident.

f. In the Application, Applicant admitted that he was convicted of driving under the influence, in violation of § 42-4-1301(a), C.R.S., pursuant to a May 12, 1994, incident.

g. In the Application, Applicant admitted that he was convicted of driving under the influence, in violation of § 42-4-1301(a), C.R.S., pursuant to an October 26, 1996, incident.

h. In the Application, Applicant admitted that he was convicted of driving under the influence, in violation of § 42-4-1301(a), C.R.S., pursuant to an August 7, 2004, incident.

8. By virtue of the facts admitted in paragraph 7 above, Applicant admits and the Board finds the above conduct is a violation of § 12-43-222(1)(e), C.R.S.

9. The Board is authorized by § 12-43-203(3)(c), C.R.S. to grant Applicant a listing in the Data Base. The Board is authorized to grant a probationary listing, subject to conditions, pursuant to § 12-43-224(3)(c), C.R.S. The Board hereby grants a probationary listing to Applicant subject to the terms and conditions outlined below. Applicant consents to the following limitations to his listing as provided by § 24-4-104(11), C.R.S. Applicant acknowledges that by consenting to this listing with limitations in lieu of a formal hearing, Applicant waives all remedies outlined in §§ 12-43-212(2) and 24-4-104(9), C.R.S.

PROBATION

10. Applicant's listing in the Data Base to practice as a registered psychotherapist in the State of Colorado is hereby placed on probation for two (2) years commencing from the effective date of this Order or the date Applicant's urinalysis monitoring independent agency is approved, whichever date is later. During the probationary period, Applicant shall be bound by the terms and restrictions set forth in this Order. If at any time Applicant is not in compliance with the terms and restrictions of probation, Applicant shall cease the practice of psychotherapy.

11. The period of probation is tolled during any time that Applicant is not practicing as a registered psychotherapist in the State of Colorado, and such period of probation shall resume at such time as Applicant resumes practicing as a registered psychotherapist in the State of Colorado in accordance with this Order.

12. Applicant shall report to the Board if he discontinues the practice of psychotherapy, and Applicant shall notify the Board upon resuming the practice of psychotherapy.

13. Credit toward the period of probation will be given only for the period of time during which Applicant is practicing as a psychotherapist in the State of Colorado, and is in full compliance with all terms of this Order.

14. If at the end of the probationary period, Applicant has adhered to all terms and conditions of this Order, Applicant may request termination of probation. Request for termination of probation must be made in writing to the Board, and Applicant is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation.

ABSTINENCE FROM ADDICTIVE SUBSTANCES

15. During the period of probation, Applicant shall abstain from the use of any habit-forming drug, any controlled substance, and/or any alcoholic beverage other than as administered, dispensed or prescribed by an authorized person other than Applicant. Applicant shall use such habit-forming drug, controlled substance, or alcoholic beverage only as directed by such authorized person and only for the condition identified by such authorized person.

16. Applicant shall submit to the Board three (3) independent urinalysis testing agencies for Board approval. Upon approval by the Board, Applicant shall enter into a contractual arrangement with the agency for monitoring in accordance with the terms of this stipulation.

17. Applicant agrees to random urinalysis testing monitored and administered by the independent agency to insure compliance with this Order.

Applicant shall submit to urinalysis testing, monitored and administered by the approved independent agency, on randomly-selected days on a frequency to be determined by the independent agency, but not to be less than once per month. Applicant shall sign a release and/or execute any necessary waiver to ensure that the urinalysis monitor may report his progress and compliance with this Order to the Board.

AUTHORIZED USE OF ADDICTIVE SUBSTANCES

18. Except in the case of a bona-fide medical emergency, Applicant shall not use a habit-forming drug or controlled substance unless prescribed by an authorized person.

19. In the case of a bona-fide medical emergency, Applicant may use the habit-forming drug or controlled substance as prescribed by the authorized person, but must notify the independent agency within 72 hours of use and/or prior to resuming practice and provide documentation to the Board from the authorized person who prescribed the medication stating the medical need.

TERMS AND CONDITIONS

20. Applicant will strictly observe the prohibitions set forth in the Mental Health Practice Act, §12-43-101 *et. seq.*, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with generally accepted standards of practice.

21. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing any mental health services, unless such supervision or consultation is monitored in accordance with this Order.

22. All expenses incurred or associated with the random urinalysis, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Board.

23. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Board of his change of address within 30 days of the effective date of such change.

24. Applicant is fully aware of and understands the right to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-4-104(9), C.R.S., and hereby waives this right. Applicant also acknowledges this waiver constitutes a waiver of all rights to appeal in this matter.

25. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

26. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-212(3), C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §§12-43-224 and 24-4-104(9), C.R.S.

27. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

28. Applicant shall obey all state and federal laws while this Order is in effect.

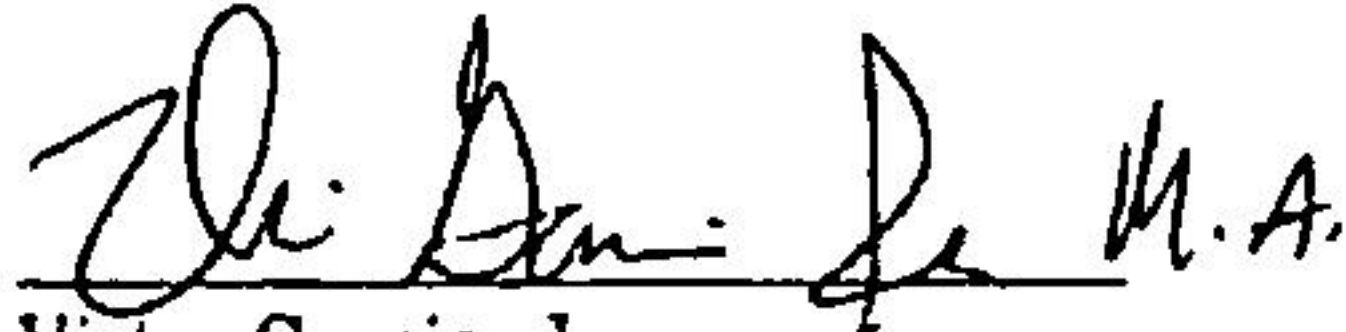
29. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises express or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

30. This Order shall become effective when accepted and signed on behalf of the Board.

31. This Order shall be admissible as evidence at any hearing held before the Board.

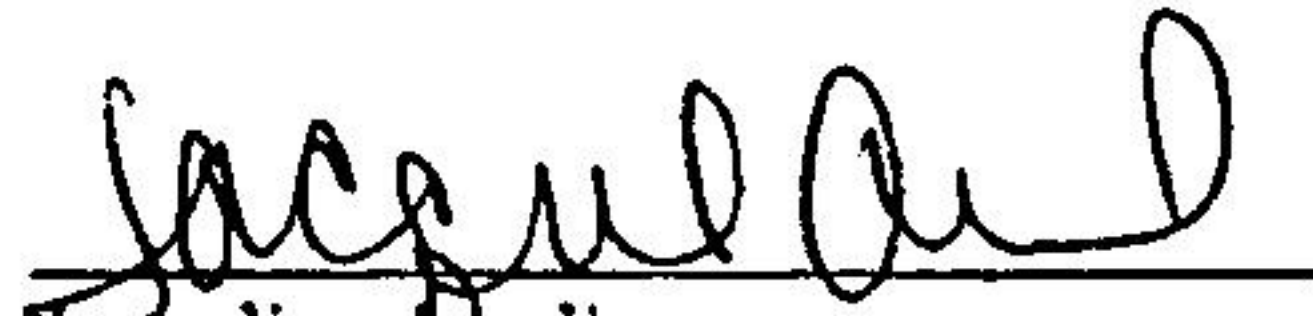
32. This Order shall be a public record in the custody of the Board.

APPLICANT


Victor Garcia, Jr.

Dated: 8/26/13

**STATE BOARD OF REGISTERED
PSYCHOTHERAPISTS**


Jacqueline Arcelin
Acting Program Director

Effective Date: This 29 day of
August, 2013.

APPROVED AS TO FORM:

JOHN W. SUTHERS
Attorney General


ROBERT W. FINKE #40756
Assistant Attorney General
Business & Licensing Section

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